

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/14/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0006315

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK: G. STRATFORD

PETITIONER: ROBERT ALLEN
RAUDSO

vs.

DEFENDANT: JOSE GUILLEN ET AL.

NATURE OF PROCEEDINGS: MOTION – RELIEVE COUNSEL

RULING

Appearances by all parties are required.

The Court understands that there is a petition for fees pending before the Probate Court. In the present action, the Court intends to **VACATE all future dates and STAY the proceedings for a period of approximately 30 days.** This stay will allow Counsel for Plaintiff and the Conservator to consider the rulings of the Probate Court and then meet and confer to determine (1) whether withdrawal is still necessary, and (2) if so, how withdrawal can be accomplished without substantial prejudice to the Plaintiff/Conservatee. The Court will hold a further hearing on the motion on **August 18, 2026, at 1:30 p.m. in Courtroom A.**

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/14/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0006430

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK: G. STRATFORD

PETITIONER: DEBORAH STEIN vs. DEFENDANT: HEADLANDS II OWNERS ASSOCIATION ET AL.	
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NATURE OF PROCEEDINGS: MOTION – COMPEL

RULING

Defendants Joseph Aiello’s (“Aiello”) motion to compel arbitration is DENIED. (Code Civ. Proc., § 1281.2,¹ subd. (c).)

Allegations

Plaintiff Deborah Stein (“Plaintiff”) filed this action arising from alleged water intrusion from the unit at 282 Headlands Court into her unit at 242 Headlands Court, causing property damage and mold. On May 29, 2025, Plaintiff filed this action. On October 15, 2025, Plaintiff filed her operative Second Amended Complaint alleging claims for: 1) general negligence; and 2) breach of contract. Aiello was added as a Doe defendant on April 25, 2026. Multiple other defendants remain in the action.

Aiello now moves to compel arbitration and stay the entire pending litigation pursuant to Code of Civil Procedure section 1281.2. The motion is based on arbitration provisions in the Declaration of Covenants, Conditions and Restrictions (“CC&Rs”) of Defendant Headlands II Homeowners Association (“HOA”), recorded April 27, 2017.

Standard

A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (§ 1281.) A written agreement to submit future controversies to arbitration “is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract.” (*Ibid.*) “On petition of a party to an arbitration agreement alleging

¹ All undesignated statutory references are to the Code of Civil Procedure.